

Return to Work Policy

Version 1

	Ted's Cameras	Version: 2
Number 2	Return to Work	Issue Date: 30/01/2024

Workplace Health & Safety (WHS): Injury Management & Return to Work Policy & Procedure

1. Purpose and Overview

To detail the process for injury, claims management and return to work for injured/illemployees of (the **Company**). To define triggers that initiate WHS and / or Human Resources (HR) involvement in the management of an employee injury/illness.

Effective and efficient injury management is an integral part of our workplace health and safety system. The primary goal of a return to work program is returning an injured/ill worker to pre-injury work, as returning to the workplace aids the rehabilitation of most injured/ill workers. The Company is committed to the rehabilitation of employees who are injured at work and to ensure that such employees, where possible, remain at work, or return to work as soon as practicable, after they have sustained an injury/illness.

The following Policy and Procedure has been implemented in consultation with employees and management. The Policy and Procedure describes how rehabilitation and return to work is implemented in the workplace and documents the roles and responsibilities for Managers and employees.

2. Scope

This policy applies to all employees of the Company.

3. Definitions

The Company: Ted's Cameras

Lost Time Injury: Defined in the Australian Standard AS 1885.1 as those occurrences that resulted in a fatality, permanent disability or time lost from work for one complete day/shift or more.

Manager: Supervisor, Team Leader, Manager, Subject Matter Expert, staff that supervise front line staff.

Workers: Employee of the Company.

Injury/Illness: Symptoms of an injury may include wound, bruise, cut, gash, tear, rent, slash, gouge, scratch, graze, laceration, abrasion, contusion, lesion, sore; disability or other physical or psychological trauma. The injury/illness may have resulted in the course of employment or outside the workplace.

Legislation: refer to sections 5 and 6 for relevant state legislation.

4. RESPONSIBILITIES

Managers are responsible for the implementation of this procedure. Local management and/or appointed WHS Coordinator manage the incident and / or actions while Human Resources manage the claim and / or insurance processes.

Management together with WHS Coordinator ensure corrective and preventative action occurs to prevent reoccurrences of injuries while Human Resources manage the insurance and risk mitigation aspect of the claim. WHS and Human Resources will work together in workplace rehabilitation including preparation of 'return to work plans'.

Responsible Person	Process
Employee	1. Employee completes incident report (online). If assistance is required please refer to your manager.
Manager	1. For Store or Department issues, Manager completes incident report (online) and undertakes investigation with the assistance of WHS Coordinator
WHS Coordinator	1. Ensures incident and investigation reports are completed correctly.

	2. Notifies insurance company, forwards relevant claim forms. 3. Reviews injury details and liaises with Human Resources if: * Employee wants to make a WorkCover claim * Results in a Lost Time Injury * Medical treatment is required * Employee is given alternate duties (as directed by doctor) 4. Forward copy of incident and investigation report to Human Resources. 5. Development of corrective and preventative action plans. 6. Manage timely completion of corrective / preventative actions. 7. Education of management on process and progress. 8. Prepares return to work plan.
Human Resources	When HR assistance is required: 1. HR assumes management of injury and / or claim. 2. Review incident report and advises WHS Coordinator or further requirements: * Requirement for an injured worker to complete claim form * Return to work plans * Additional training * Medical examination 3. Notifies payroll (if required). 4. If required, HR is the only person authorized to contact medical practitioners to discuss return to work plans etc.

POLICY & PROCEDURE

Please refer to your state where you are employed for the relevant information (pages 3-14).

Victoria

The Company will make return to work information available to its employees about:

- * The obligations of the Company under the legislation and how the employer is meeting the obligations.
- * The rights and obligations of workers under the legislation and how workers can obtain further information about their rights and obligations.
- * The name and contact details of the VWA (Victorian Worker Authority) Agent.
- * The name and contact details of the Return to Work Coordinator, and
- * The procedure for resolving return to work issues in the workplace.

To the extent that it is reasonable to do so, the Company will provide suitable employment to an injured worker if they have a current work capacity and provide pre-injury employment to them if they no longer have an incapacity for work.

To the extent that it is reasonable to do so, the Company will provide pre-injury or suitable employment to an injured worker for a period of 52 weeks of the worker's incapacity. This will commence from the date of the VWA Certificate of Capacity or a Worker's Injury Claim Form in which weekly payments are claimed is received from the worker or from when the VWA notified us of receipt of same (whichever is the earliest).

Plan to return to work

From the time that the Company receives a Worker's Injury Claim Form in which weekly payments are claimed or the initial VWA Certificate of Capacity from the worker or the VWA Agent notifies us of receipt of same (whichever is earlier), the Company will, to the extent that it is reasonable to do so, commence return to work planning for that injured worker.

As part of that planning, the Company will:

- * Obtain relevant information about the injured worker's capacity for work.
- * Consider reasonable workplace support, aids or modifications to assist the worker's return to work.

- * Assess and propose options for suitable employment or pre-injury employment.
- * Engage in consultation about the return to work of the worker and provide the worker with clear, accurate and current details of their return to work arrangements in writing.
- * Monitor the worker's progress as often as is necessary to enable the worker to return to work in employment which is consistent with the worker's capacity for work.

Consult about the return to work of a worker

The Company will, to the extent that it is reasonable to do so, consult with the worker, the worker's treating health practitioner, (with the consent of the worker) and occupational rehabilitation provider, (if one is involved) in relation to the injured worker's return to work.

The Company will consult with the parties listed above by:

- * Sharing information about the worker's return to work.
- * Providing a reasonable opportunity for them to consider and express their views about the worker's return to work, and
- * Taking those views into account.

The Company will consult directly with the worker about their return to work, but the worker may be assisted by a representative during any consultation (except for a legal practitioner). The worker may be represented, assisted and supported during the return to work process.

Return to Work Coordinator

A Return to Work Coordinator is available who has an appropriate level of seniority and is competent to assist the Company to meet its obligations under the various workers' compensation jurisdictions, contact Sharon Mendes on 03 8779 5518, email sharonm@teds.com.au Postal: Level 1, 171-179 Ferrars Street, Southbank VIC 3006

Authorised Insurer: EML

Phone: 1800 365 842 Web: <https://www.eml.com.au/> Postal: GPO Box 4695, MELBOURNE VIC 3001

WorkSafe Phone: free call 1800 136 089 Web: [worksafe.vic.gov.au](https://www.worksafe.vic.gov.au) Email: info@worksafe.vic.gov.au

Resolution of return to work issues

The relevant procedure specified in the [Workplace Injury Rehabilitation and Compensation Act 2013](#) (Ministerial Direction) - The Return to Work Direction and Issue Resolution Procedure.

Worker's return to work rights and obligations

Injured worker rights are:

- * To be provided with return to work information and be consulted about how that information is to be made available.
- * To the extent that it is reasonable for the Company to do so, to be provided with suitable employment if they have a current work capacity or pre-injury employment if they no longer have an incapacity for work for a period of 52 weeks in accordance with the legislation.
- * To be consulted by the Company about their return to work.
- * To the extent that it is reasonable for the Company to do so, to be consulted and be provided with information about their return to work. The injured worker must be given a reasonable opportunity to consider and express their views about their return to work and have those views taken into account.
- * To be represented, assisted and supported (except by a legal practitioner) during any stage of the return to work process, including in the consultation process.

Injured worker obligations are:

- * In co-operation with the Company and the Agent, to make reasonable efforts to actively participate and co-operate in planning for their return to work.

- * In co-operation with the Company and the Agent, to make reasonable efforts to return to work in suitable or pre-injury employment at their place of employment or at another place of employment.
- * To actively use an occupational rehabilitation service where provided and cooperate with the provider of that service.
- * To actively participate and cooperate in assessments of their capacity for work, rehabilitation progress and/or future employment prospects at the request of the Company and / or the Agent.
- * To actively participate and cooperate with the representative of the Agent in an interview to enhance their opportunities to return to work.
- * If an issue about their return to work arises, to attempt to resolve the issue in accordance with the procedure for resolving return to work issues (see above).

If the employee does not comply with one or more of the above obligations, weekly payments may be suspended, terminated or ceased and determined in accordance with the appropriate legislation by our Agent.

Additional details regarding the rights and obligations of an injured worker are available in VWA's *Return to Work Obligations – Information for Workers Fact Sheet* available from www.worksafe.vic.gov.au.

ACT

Rehabilitation is a strategic process of intervention and management of, workplace injury or illness. The purpose is to keep injured/ill workers at work or assist their early return to their pre-injury position or to alternate duties that suits their capacity and business requirements. Rehabilitation commences once an employee advises their manager that they have sustained a work related injury or illness and may end when an employee returns to their pre-injury employment or suitable alternative employment within the Company.

The Company supports an environment for employee safety, health and wellbeing. Part of this is a commitment to occupational rehabilitation for employees who sustain work related injuries or develop work related illnesses that impact on their ability to perform their work, with the objective of returning employees to work through early and appropriate intervention. Where available, the Company will

provide suitable duties, in order to maintain staff at work or facilitate an early return to work. This procedure outlines the roles, responsibilities and rights of the various stakeholders in the rehabilitation process, to achieve effective return to work of injured/ill staff.

Employer obligations

- * Holding a current workers compensation insurance policy for all workers in the ACT.
- * Complying with their insurer's Injury Management Program.
- * Displaying a notice that outlines the requirements under the Act for making compensation claims, including the name of the insurer and current insurance policy details.
- * Establishing (and displaying) a written Return to Work Program in consultation with workers, an approved rehabilitation provider and relevant unions.
- * Providing a Register of Injuries that is accessible to all workers.
- * Providing specific information required by the insurer including six-monthly wage reports.
- * The policy must cover all workers, at all times including working directors and contractors who are engaged on a regular and systematic basis in the ACT.

Obligations in Handling a Claim

When a worker is injured and seeks to make a workers compensation claim an employer must:

- * Make compensation claim forms available to the worker.
- * Record in the Register of Injuries the date of the Notice of Injury.

- * Notify the insurer of an injury within 48 hours of being made aware of the workplace Injury.

If the employer fails to give notice within the specified timeframe (48 hours), the employer may be directly liable for weekly compensation from the end of the notification time until the notice is given to the insurer and cannot be reimbursed by the insurer for compensation paid prior to the date of notification. An employer must:

- * Forward the worker's claim form to the insurer within seven (7) days of receiving the claim form from the worker.
- * Co-operate in the development of, and comply with, the insurer's Personal Injury Plan for the injured worker.
- * Provide vocational rehabilitation.
- * Ensure that any payments for the worker, received from the insurer are immediately paid to the worker.
- * Provide suitable employment, if available, for an injured worker where a request for work is received within six (6) months of the injury.

Manager responsibilities

- * Sustain a culture that resources early, active intervention to support and encourage injured/ill workers to a safe and durable return to work.
- * Promote a culture of prompt notification of any workplace incidents.
- * Ensure effective responses to, and management of, workplace injury or illness.
- * Comply with administrative requirements of rehabilitation and compensation claims as

required by the regulatory bodies.

- * Provide workplace flexibility to accommodate suitable duties or employment to support the workplace based rehabilitation of injured/ill staff.
- * Ensure that information relating to worker rehabilitation programs is treated confidentially in line with relevant legislation.
- * Ensure the non-prejudicial treatment of workers participating in workplace-based rehabilitation programs in line with legislative requirements.
- * Support workers by enabling them to undertake safe work practices and procedures and access appropriate information, training and supervision, to understand their roles and responsibilities with regard to rehabilitation.
- * Provide, or promptly refer injured/ill workers for, first aid and/or medical attention, as appropriate.
- * Maintain appropriate contact with injured/ill workers.
- * Ensure Claim for Compensation forms and associated documentation is submitted quickly to HR.
- * Ensure a safe workplace exists for workers returning to work after injury or illness.
- * Facilitate support for an injured/ill staff member's Return to Work Program (RTWP).
- * Maintain non-prejudicial treatment of workers participating in rehabilitation programs; and
- * Communicate effectively with the relevant Rehabilitation Case Manager regarding rehabilitation of injured/ill workers.

Human Resources / Rehabilitation Case Manager responsibilities

- * Initiate contact with injured/ill worker within 24 hours of receiving the Incident Notification.
- * Ensure that worker rights and obligations relating to rehabilitation are clearly explained.
explained.
- * Organise an initial assessment of injured/ill worker as soon as possible to identify their rehabilitation requirements.
- * Determine and develop the return to work plan for injured/ill workers, in conjunction with relevant stakeholders.
- * Act as facilitator for injured/ill workers, supervisor, rehabilitation providers and health practitioners.
- * Ensure that the worker, (and their representatives) are consulted during all stages of their rehabilitation process.
- * Ensure confidential treatment of information relating to employee on rehabilitation programs.
- * Support the non-prejudicial treatment of workers participating in rehabilitation programs; and
- * Assist in monitoring and reporting to management on rehabilitation outcomes.

Injured/Ill Workers responsibilities

- * Report all relevant incidents or illnesses that may affect their ability to perform their work, or affect co-workers, as soon as possible to their supervisor, and submit an Incident Report;
- * Seek medical attention promptly when an injury or illness has been sustained or contracted;

- * Provide medical certification to their supervisor and HR / Rehabilitation Case Manager of clearance for work duties or details of applicable work restrictions prior to their return to work;
- * Actively participate in the development and implementation of their rehabilitation program including the Return to Work Program (RTWP) and any assessments recommended by the Human Resources department Rehabilitation Case Manager;
- * Submit promptly all relevant original medical certificates and reports together with leave applications for work absences to Human Resources / Rehabilitation Case Manager;
- * Inform Human Resources / Rehabilitation Case Manager and/or manager of their progress including any changes in their circumstances during rehabilitation; and
- * Cooperate with the Company so it can meet its rehabilitation obligations as an employer.

The Rights of Workers

- * Choose to have a support person present at any meeting regarding rehabilitation; and
- * Seek advice before signing documentation associated with a Rehabilitation Program or a Worker's Compensation Claim, if required.

New South Wales

Employer obligations

- * Maintain a readily accessible register of injuries for all incidents, accidents and near misses and make sure all employees are aware of it. Provide the worker with:
 - * the name of the insurer,
 - * the name and contact details of the employer,

- * a workers compensation claim form (if requested by the worker).
- * Must appoint and train an employee as a Return to Work Coordinator to help in the return to work process.

Following an injury

- * Attend to employee as soon as possible, ensuring they receive medical treatment if required.
- * Notify the insurer within 48 hours.
- * Complete the register of injuries as soon as possible.
- * Work with the insurer to develop an injury management plan for the injured worker.
- * Implement and monitor a return to work plan for the injured worker.
- * Not dismiss an injured worker within six (6) months of the worker becoming unfit as a result of a work injury.

Once a notification of injury form is completed

- * Forward it to the insurer within five (5) days of receipt in order to have your excess waived
- * Forward relevant medical certificates as soon as possible.

Return to Work Coordinator responsibilities

- * Ensure the Company is meeting its obligations as outlined above.
- * Notify the insurer within 48 hours of notification of a claim.
- * Liaise with the insurer and worker on any claim.
- * Coordinate rehabilitation and return to work.
- * Liaise with supervisor in relation to the return to work plan.
- * Liaise with rehabilitation provider if required.
- * Keep and file documentation relating to the claim, rehabilitation and return to work plans.

Managers' responsibilities

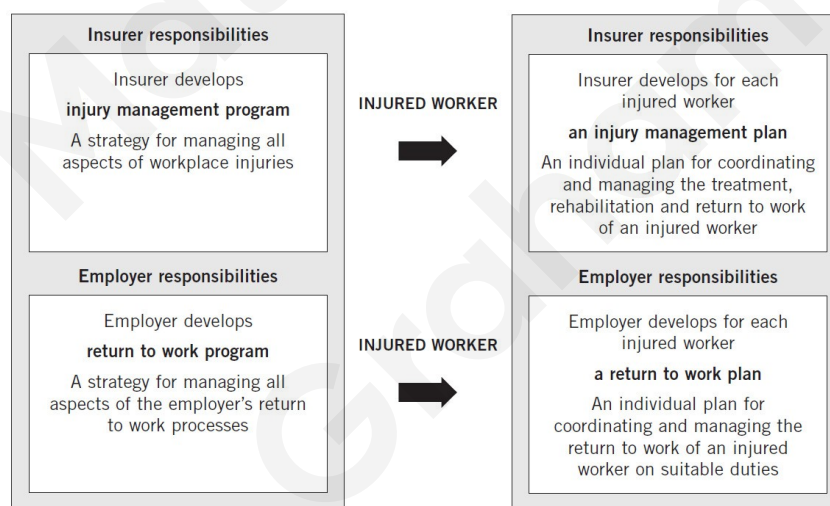
- * Participate and cooperate in the establishment, implementation and supervision of an injured/ill worker Return to Work plan.
- * Assist in the identification of transitional (suitable)
- * Liaise regularly with the injured staff member and the Return to Work Coordinator

Injured worker's obligations

- * Notify the Company of any injury / illness as soon as you become aware of it.
- * Complete an Incident Report from.

- * Make a workers compensation claim (including providing a WorkCover medical certificate) in order to receive payment for medical expenses and time lost due to medical appointments.
- * Nominate your own treating doctor, usually a GP who agrees to participate in the planning of your return to the workforce.
- * Actively participate in treatment and planning your return to work including participating in assessments to determine capacity for work, rehabilitation progress and future employment prospects.
- * Make every reasonable effort to return to work in suitable employment.
- * Notify the Company within seven (7) days if you are receiving workers compensation payments and start working for another employer or start your own business.

If you do not meet these obligations, your entitlement to weekly payments and medical and other expenses may be affected.



Queensland

Employer rights and responsibilities

The Company must appoint a Rehabilitation and Return to Work Coordinator (RRTWC). The employer must also establish and maintain Workplace Rehabilitation Policy and Procedures

As an employer of Queensland workers, the Company has both rights and responsibilities during the claims process with WorkCover.

Injuries at work

The employer must notify WorkCover immediately of any injury for which compensation may be payable as soon as details of the worker's injury are available. It is then the worker's decision to claim for compensation.

During the claim

If the claim is accepted, the employer should take every reasonable step to cooperate and participate with rehabilitation and suitable duties and keep WorkCover informed about the worker's progress in returning to work.

The employer pays an excess on any accepted claim if the worker has taken time off from work due to their injury. This excess will be the lesser of: 100% of Queensland full-time adult's ordinary time earnings (QOTE), or the injured worker's weekly compensation rate.

The employer should also notify WorkCover of claim expenses, in order for reimbursement.

Rights

Raise any concerns with the claims representative or customer advisor throughout the duration of the claim. This may include disputing the claim, or any decisions made about the claim.

Disputes and reviews are managed through the Workers' Compensation Regulator.

Workers' rights and responsibilities

As a Queensland worker, you have both rights and responsibilities during the claims process with WorkCover. It is important when you apply for compensation that you understand what is required during the application and rehabilitation process.

Making a claim

Under the Act, workers are required to cooperate with WorkCover, their employer and their doctors. This helps WorkCover make a decision on the claim and also helps workers receive appropriate medical treatment and rehabilitation as quickly as possible.

To make sure a claim is made efficiently, as a worker you must:

- * Complete and sign all necessary forms.
- * Advise Work Cover if your condition or treatment changes.
- * Make sure Work Cover has all current workers' compensation medical certificates.

You can only receive workers' compensation benefits if WorkCover has a copy of these.

During the claim

You must ensure that:

- * All information provided to WorkCover is true and not misleading. For example you must disclose if you are receiving Centrelink payments.
- * You participate in rehabilitation programs if required to.
- * You tell WorkCover if you are returning to work of any kind. This includes self-employment or working for another. This applies whether or not you are paid for performing the activity.

Penalties can apply if you do not comply with these requirements. WorkCover can suspend a worker's compensation benefits or prosecute for an offence under the Act if these requirements are not fulfilled. Penalties do not apply if you satisfactorily participate in rehabilitation or provide a reasonable excuse for not participating.

If the claim is not accepted

WorkCover carefully considers the facts presented when making decisions to either accept or reject an application for compensation. You must:

- * Be a Queensland worker.
- * Lodge your application in time.

Also, was the event that caused your injury work-related?

Based on the facts presented, WorkCover determine to accept or reject your claim. If your application is not accepted, your claims representative will speak to you and explain the decision that has been made. A letter will be sent to you explaining the information considered and the reason why your application was not accepted.

If the claim has ceased

WorkCover carefully considers the facts presented when making a decision to stop payments for treatment or compensation. Has the necessary and reasonable treatment been provided and are you able to work due to the accepted work related injury?

A claim may be ceased and payments stopped for different reasons. For example, if you have received all appropriate treatment for your work-related injury, however require additional treatment for a pre-existing or non-work-related condition or injury, WorkCover Queensland will be unable to pay for the additional treatment. This will be determined on medical evidence.

Rights

If you are unhappy about decisions made by WorkCover Queensland, these issues can be addressed through our internal complaints process or through the Workers' Compensation Regulator's review process.

Phone 1300 362 128, or speak to your WorkCover claims representative or customer advisor directly if you have any questions about your rights and responsibilities in Queensland.

Rehabilitation and Return to Work Coordinator responsibilities

- * Early identification of injured or ill workers who may need rehabilitation.

- * Coordinate and monitor the staff member's progress as specified in their suitable duties plan.
- * Compiling and investigating the initial injury notification information.
- * Facilitating and leading the early communication with an injured worker to clarify the nature and severity of the worker's injury.
- * Developing the suitable duties program component of a rehabilitation and return to work plan, if a plan is required, in consultation with the worker, the worker's employer and treating medical practitioner.
- * Monitoring and ensuring the rehabilitation and return to work plan is consistent with the current medical certificate or report for the worker's injury.
- * Liaising with:
 - * any person engaged by the employer to help in the worker's rehabilitation and return to work;
- * the insurer about the worker's progress and indicating, as early as possible, if there is a need for the insurer to assist or intervene; and
- * Educating workers and management about workplace rehabilitation.

Manager

- * Ensure the early reporting of the injury using an Incident Report form.
- * Assist in the development and implementation of suitable duties programs for staff under their responsibility.

- * Ensure that the conditions agreed to in the suitable duties program are met, and that the program is complied with, and monitor the day-to-day progress of the staff member on suitable duties programs.
- * Liaise with the injured worker and the Rehabilitation and Return to Work coordinator.

Suitable Duties Plan

The duties are selected to match the staff member's capacity for work, in accordance with medical guidelines that may be provided by their treating doctor.

A Suitable Duties Plan including a graduated schedule of hours and duties is often followed as part of the work rehabilitation program.

South Australia

Employer obligations

- * On receipt of a report of an injury from a worker, notify the claims agent by phone.
- * Provide a copy of the Claim form and a WorkCover Medical Certificate within five calendar days, in order to be exempt from reimbursement of the first two weeks of weekly payments.
- * Pay for the first two weeks of weekly payments.
- * Do not refuse to report a claim by a worker. Employers who fail to or delay reporting a claim maybe penalized.
- * Provide suitable employment in consultation with the Case Manager and the worker and be actively involved.
- * Comply with the requirements of the worker's return to work plan (if they have one).
- * Do not dismiss the worker without first giving them or the Case Manager at least 28 days'

notice.

- * Appoint and train a Rehabilitation and Return to Work Coordinator (RRWC) to help in the return to work process.

Confidentiality

The employer must not disclose information about the physical or mental condition of your injured workers unless the disclosure is:

- a. Reasonably required for, or in connection with, the carrying out of the proper conduct of the business of the employer; or
- b. Required in connection with the operation of Occupational Health, Safety and Welfare Act 1986; or
- c. Made with the consent of the person to whom the information relates, or who furnished the information; or
- d. Required a court or tribunal constituted by law, or before a review authority; or
- e. Authorised or required under any other Act or law; or
- f. Made— (i) to the Corporation; or (ii) to the worker's employer; or
- g. Made under the authorisation of the Minister; or
- h. Authorised by regulation

We must ensure that at the time personal information is collected from injured workers, they are aware of the purposes for which the information has been collected, how it may be used, to whom it may be disclosed and who may have access to it.

Rehabilitation and return to work coordinator responsibilities

- * Where possible, complete the Workers compensation claim form together with your worker.
- * Ensure the employees immediate needs are met (i.e. transport, family notification)
- * Make sure the injured worker is:

- * aware of their rights and responsibilities;
 - * given a contact telephone number, a workers compensation Claim form and a medical authority to sign, allowing the treating doctor to release information;
 - * Is given a copy of WorkCover publication: *Injured at Work? Part 1: Recover Better at Work*;
 - * has a copy of this procedure.
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- * Forward the claim form and the worker's WorkCover Medical Certificate to your claims agent within five business days of receiving the The doctor who treated your worker will provide them with a WorkCover Medical Certificate.
 - * Provide wage details of the worker, so your claims agent can calculate the amount the worker should be paid to compensate for the income they would have earned.
 - * Keep a copy of the completed form for your records.
 - * Liaise with the Case Manager and worker in regards to suitable duties and return to work process.
 - * Keep in touch with the case manager until their worker has returned to normal work and normal hours (this includes notifying the case manager if there is any change in type of work or hours.
 - * Assist injured workers to remain at or return to work as soon and as safely as possible after injuries occur.
 - * Liaise with the claims agent in the preparation and implementation of rehabilitation and return to work plans for injured workers.

- * Liaise with persons involved in rehabilitation or providing medical services to injured workers.
- * Maintain regular contact with injured workers and monitor the progress of injured workers' capacity to return to work.
- * Subject to the injured worker signing a medical authority, contact the treating medical practitioner to obtain medical guidelines for a return to work.
- * Take steps to prevent the occurrence of secondary injuries.

Manager duties include:

- * Participate and cooperate in the establishment, implementation and supervision of an injured staff members' Return to Work plan.
- * Assist in the identification of suitable duties.
- * Liaise regularly with the injured staff member and the RRWC.

Injured Worker Obligations include:

- * Report an injury either verbally or in writing within 24 hours, and advise whether you intend to make a claim for workers compensation or not.
- * If you have decided to make a claim, complete the Workers compensation claim form.
- * Actively participate in treatment and planning your return to work.
- * Participate in assessments to determine your capacity, rehabilitation progress and future employment prospects.

- * Make every reasonable effort to return to work in suitable employment.

Employers Rights

- * Actively participate in an injured worker's rehabilitation and return to work
- * Request that the injured worker's case manager reviews a claim if we believe that weekly payments should be stopped or reduced.
- * Request that an injured worker attends an examination by a recognised medical expert.
- * Be provided with copies of medical reports when requested in writing and ask for reports on an injured worker's medical progress and incapacity for work.

Employees Rights

- * Have a treating doctor/specialist of their choice and obtain a second opinion from a specialist.
- * Be actively involved in all decisions and actions relating to their rehabilitation.
- * Have a representative (a family member, union official, medical officer, or OHS representative) attend any meeting at which the employee's rehabilitation and return to work is being discussed.
- * Seek independent advice before signing any documentation.
- * Have personal and medical information kept confidential.
- * Be provided with a copy of the suitable duties schedule or a rehabilitation and return to work plan that takes proper account of the employee's individual needs.

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- * Have an interpreter at meetings and appointments if required.
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Tasmania

Employer Obligations

- * Maintain a readily accessible register of injuries for all incidents, accidents and near misses and make sure all employees are aware of it.
- * Appoint and train a Return To Work Coordinator if there are 50 or more workers.
- * Allow the injured worker to visit a doctor.
- * Consult with the injured worker, their treating doctor and insurer about the plan for assisting them return to work.
- * Prepare a Return to Work plan
- * Provide the injured worker with employment that is suitable based on their work capacity, until they are able to return to their pre-injury duties.

When an injury occurs

- * Attend to the injured worker asap, ensuring they receive medical treatment where required.
- * Notify the insurer as soon as possible.
- * Complete the register of injuries.
- * Implement and monitor a Return To Work Plan for the injured.

- * Not dismiss an injured worker within 12 months of the worker becoming unfit as a result of a work

Making a claim

Once a claim form is completed:

- * Forward it to the insurer within five working days of receipt.
- * Forward relevant medical certificates as soon as possible.

Injured worker's obligations

- * Notify their employer of any injury or illness as soon as you are aware of it.
- * Make a workers' compensation claim (including providing a WorkCover TAS Form 1 Medical Certificate) in order to receive payment for medical expenses and any time lost.
- * Nominate your treating doctor, usually your GP to participate in the planning of your return to work.
- * Actively participate in treatment and planning their return to work.
- * Participate in assessments to determine your capacity, rehabilitation progress and future employment prospects.
- * Make every reasonable effort to return to work in suitable
- * Notify the employer within seven days if you are receiving workers compensation payments and start working for another employer or start your own business.

If you do not meet these obligations, your entitlement to weekly payments and medical and other expenses may be affected.

Return to Work Coordinator Responsibilities

- * Assist with return to work planning and implementation of the worker's approved return-to-work plan or injury management plan.
- * Monitor the worker's progress towards returning to work.
- * Assist the worker to perform the worker's designated work duties in a safe and appropriate
- * Provide the worker with reassurance and encouragement in respect of the treatment of the worker's injury and the worker's return to work.
- * Encourage and foster a good relationship, and effective communication, between the worker, the worker's employer and the employer's insurer.

5. References and Legislation

- * Occupational Health and Safety Act (2004)
- * Work health & Safety Act 2011
- * Model Work Health and Safety Regulations 2014
- * Workplace Relations Act 1996 (Cth)
- * Workplace Injury Rehabilitation and Compensation Act 2013 (WIRC Act)

Legislation & Insurer Summary

Jurisdiction	Legislation	Our Insurer
ACT	Workers Compensation Act 1951	CGU

New South Wales	Workplace Injury Management and Workers Compensation Act 1998. Workers Compensation Act 1987. Workers Compensation Regulation 2003.	CGU
Queensland	Workers Compensation and Rehabilitation Act 2003	WorkCover
South Australia	WorkCover Corporation Act 1994. Return to Work Act 2014. Return to Work Regulations 2015.	WorkCover/EML
Tasmania	Workers Rehabilitation and Compensation Act 1988. Workers Rehabilitation and Compensation Regulations 2001.	Allianz
Victoria	Accident Compensation Act 1985. Accident Compensation (WorkCover Insurance) Act 1993. Workplace Injury Rehabilitation and Compensation Act 2013. Accident Compensation Regulation 2001.	EML

6. Related documents

- * Workplace Health & Safety Policy
- * Incident Management Procedures: Incident Report Form
- * Drug & Alcohol Policy
- * WHS Consultation Procedure
- * Risk Management Procedure

7. Version control

Version	Description of Changes	Date Issued	Author
1	Document created and approved	18 August 2015	KH
	Review Date	As required	KH
2	Document reviewed and updated document	12 February 2019	SD, National HR Manager
	Two year review	30 January 2024	SM

Further assistance

Further information, advice or assistance please contact Human Resources on phone: (03) 8779 5504 or email: hr@teds.com.au

8. Attachment

Attachment 1: Return to Work and Injury Management Plans Explained

Attachment 1

Return to Work and Injury Management Plans Explained

	Return to Work Plan	Injury Management Plan
Goal	To help an injured worker stay at work or return them to their pre-injury duties and employer.	To return an injured worker to a functioning lifestyle which may or may not include returning them to work.
Severity of injury	Severity of injury is usually low, but could be moderate to high where a return to work plan is being prepared as part of an injury management plan.	Severity of injury is usually moderate to high.
Primary focus	The primary focus is on return to work. Usually treatment and rehabilitation is straightforward. Treatment and rehabilitation requirements are typically more complex where a return to work plan is developed as part of an injury management plan.	The primary focus is on medical treatment and recovery, followed by rehabilitation activities and then developing return to work strategies. It is possible that activities can cross over between phases.
Outcomes	Sets out what is to be achieved in order to help the injured worker stay at or return to work.	Sets out what is to be achieved in each of the three key strategies for returning the injured worker to a functioning lifestyle.
Doctor participation	Doctor involvement is typically minimal and usually decreases with time.	Initial doctor involvement is typically substantial due to a greater need for treatment and rehabilitation but will generally decrease with time.
Employer participation	Employer involvement is typically substantial and increases with time.	Initial employer involvement is usually minimal but increases with time.

When preparing plans, what should they consist of?

	Return to Work Plan	Injury Management Plan
Supporting documentation	Prepared from information supplied from the Initial Workers Compensation Medical Certificates.	Prepared from information supplied from Treatment Plans, Rehabilitation Plans/ Assessments and Medical Certificates/ Reports.
Content of plans	Primarily consists of return to work arrangements such as identifying and implementing suitable duties.	Comprises three individual components: Treatment strategy Rehabilitation strategy Return to work strategy
Plans prepared by	Typically the Injury Management Co-ordinator or Return to Work Coordinator in collaboration with the Primary Treating Medical Practitioner	Typically the Injury Management Co-ordinator or Workplace Rehabilitation Provider in collaboration with the Primary Treating Medical Practitioner.

Consent to plans	Consent is to be sought from the injured worker and employer. Consent from the Primary Treating Medical Practitioner is also encouraged.	The return to work strategy (typically a return to work plan) is to be consented to by the injured worker and employer. The treatment and rehabilitation strategies should be agreed to by the injured worker and Primary Treating Medical Practitioner.
Copies of plans	Copies of the plan are to be supplied to all relevant parties (i.e. the Primary Treating Medical Practitioner, injured worker, employer, supervisor and Injury Management Coordinator.	Copies of the treatment and rehabilitation strategies are provided to the injured worker, Primary Treating Medical Practitioner and Rehabilitation Provider. Although a copy of these strategies is not provided to the employer, they should be notified of relevant information. A copy of the return to work strategy is to be provided to all parties.